



File No.: EXP202211376

RESOLUTION No.: R/00105/2023

Considering the complaint filed on October 1, 2022, with this Agency by Mr. A.A.A. against GOOGLE LLC, for not having properly addressed his request to exercise the rights established in Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR).

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the complainant) exercised the right to erasure concerning the URL transcribed in his complaint, against GOOGLE LLC with Tax Identification Number 770493581 (hereinafter, the defendant).

The complainant states that personal data is published in the search engine without his consent and requests that it not be associated in the search results of the URL referenced in the complaint, which is known to the parties.

***URL.1

He provides various documentation related to the exercise of the right exercised.

The defendant denied the complaint and considers that the disputed URL refers to information that presents undeniable relevance and public interest, related to the professional activity of the interested party.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the defendant entity for analysis and response to the complainant and this Agency within one month.

The defendant has indicated that the information the complainant intends to block refers to his professional life and that it has re-examined the request, considering that it is not appropriate to grant his request.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims as satisfied. Consequently, on December 14, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the defendant entity a hearing period, so that within ten working days it could present any allegations it deemed appropriate. This entity indicated, in summary, that it has reconsidered its initial decision and has blocked the URL subject to the complaint.

FOURTH: After examining the allegations presented by the defendant, they are forwarded to the complainant, so that, within fifteen working days, he may formulate any allegations he considers appropriate.

The complainant indicated, in summary, that the defendant had not attended to his right despite having requested it repeatedly.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the GDPR; and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding their

obligations, as well as to handle complaints submitted by an interested party and investigate the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that it had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

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“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, concerning the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

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“1. Every person has the right to have search engines on the Internet remove from the lists of results obtained from a search conducted using their name the links published that contained information related to that person when such information is inappropriate, inaccurate, irrelevant, outdated, or excessive, or has become such over time, taking into account the purposes for which it was collected or processed, the time elapsed, and the nature and public interest of the information.

Similarly, this should be done when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service.

This right shall persist even when the retention of the information published on the website to which the link directs is lawful and it has not been previously or simultaneously deleted.”

As stated in the Supreme Court Judgment of January 11, 2019, “This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from respect for other fundamental rights are applicable, among which the freedom of information proclaimed by Article 20 of the Constitution is of particular relevance.”

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates Internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and provides the user with a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014 states the following:

Paragraph 28: (...) “by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, extracts, records, and subsequently organizes it within the framework of its indexing programs, stores it on its servers, and, where appropriate, communicates and facilitates access to its users in the form of lists of results from their searches. Since these operations are explicitly and unconditionally covered by Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data.”

Paragraph 33: “However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out within this framework and, consequently, must be considered responsible for such processing under the aforementioned Article 2, letter d.”

Section 35: “In this regard, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that conducted by website publishers, which consists of displaying such data on a webpage, and is additional to it.”

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the search engine without resorting to the website operator, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (case C-131/12), stated:

“(...) data processing (...) carried out by the operator of a search engine can significantly affect the fundamental rights to respect for private life and to the protection of personal data when the search conducted using that search engine is based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information relating to that person that may be found on the Internet, which potentially affects a multitude of

aspects of their private life, which, without that search engine, would not have been interconnected or could only have been very difficult to do so, and thus allows the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which gives the information contained in such a list of results a ubiquitous character (see, in this regard, the judgment in *eDate Advertising and others*, C-509/09 and C-161/10, EU:C2011:685, paragraph 45)."

"The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could impact the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union."

"(...) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained from a search conducted based on the name of a person links to webpages published by third parties that contain information relating to that person, even in the event that this name or this information is not removed prior to or simultaneously from these webpages, and, where applicable, even if the publication on such pages is lawful in itself."

Consequently, the processing of personal data carried out by the search engine operator allows for a "name" to yield a list of results that provide information about a person that may affect their private sphere. Once the data subject has submitted their request for erasure of their...

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personal data before the search engine, it must examine it and proceed, if applicable, to the removal of the specific links from the results list, without having to first or simultaneously approach the website owner.

Furthermore, it is also deduced from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the weighing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that "the so-called 'right to digital oblivion', which is a specification in this field of the rights derived from the quality requirements for the processing of personal data, does not protect the ability of each individual to construct a past to their liking, forcing web page editors or search engine managers to eliminate the processing of their personal data when associated with facts that are not considered positive. It also does not justify that those who publicly expose themselves can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, eliminating negative information from the Internet, 'positioning' the results of Internet searches at their whim, so that the most favorable occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country."

The doctrine collected in the judgment of the National Court, of June 21, 2019, is also relevant, which specifies, in its fifth legal basis, the following, in relation to the information related to the professional life of the interested party:

"(...) General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in accessing information in a search concerning the name of a person and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the preponderant interest of the public in having, as a result of this inclusion, access to the information in question.

In the case at hand, entering into the weighing of the rights and interests at stake, it must first be taken

into account that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant to modulate the intensity that the protection of the right regulated in art. 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.”

In this sense, it is appropriate to refer to the guidelines of the Working Group of the 29 on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on “Google Spain and inc v. AEPD and Mario Costeja” C-131/12), which states: “There is a basic difference between the private life of

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the person and public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it relates to the professional life of the individual concerned, but this will depend on the nature of the individual's work and the legitimate interest of the public in accessing that information through a search by their name (...).”

When the information refers to private individuals, the Constitutional Court has declared that “even when the news on the subject concerns the public interest, not all of its content is protected by the freedom of information—in this case, freedom of expression—but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or privacy of the person concerned and that are revealed as ‘manifestly unnecessary and irrelevant to the public interest of the information’” (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time elapsed. On this issue, the National Court declared in its ruling dated November 8, 2017, the following: “moreover, unlike the first link, an excessive amount of time has not elapsed between the date on which the cancellation request was made to the search engine and the date of the publication of the news. Indeed, since the date the news was published (August 2011) and the date on which the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the terms that apply in this case and as previously stated, does not affect this conclusion.”

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: “even an initially lawful processing of accurate data may become, over time, incompatible with that Directive when such data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer pertinent or are excessive in relation to these purposes and the time elapsed.”

The Judgment of the Constitutional Court 89/2022, of June 29, 2022, upholds the amparo appeal filed by the appellant and, by virtue of it, declares that their right to the protection of personal data has been violated, and restores them in their right, and for this purpose, declares the nullity of the judgment of Section Three of the Contentious-Administrative Chamber of the Supreme Court, dated September 17, 2020, and the judgment of Section One of the Contentious-Administrative Chamber of the National Court, dated December 14, 2018.

Said STC 89/2022 establishes in Legal Basis 5 “Resolution of the second complaint for violation of the fundamental right to be forgotten

(...) the appellant alleges the violation of the right to be forgotten due to infringement of the criteria for weighing the public relevance of what was disseminated and the time elapsed. The appellant indicates that these criteria were established in the STJUE Google Spain and in the STC 58/2018, of June 4, and the Supreme Court would have applied them incorrectly.

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(...) A) The criterion of "the public relevance of what is disseminated."

(...) It should be noted that the concept of "matters of public relevance" is a concept that this court has been considering as a prerequisite for assessing the preponderant value of the public freedoms of information and expression under Article 20 of the Spanish Constitution (CE), in contrast to the right to honor and personal and family privacy under Article 18.1 CE (among others, Constitutional Court Judgments 49/2001, of February 26, FJ 6, and 216/2013, of December 29, FJ 5). This criterion was also applied, as indicated by the appellant, in Constitutional Court Judgment 58/2018, where we discussed the "right to freely communicate truthful information [Article 20.1 d) CE], which protects the dissemination of facts that deserve to be considered newsworthy because they refer to matters of public relevance that are of general interest due to the subjects they address or the individuals involved" (FJ 6).

In the present case, "the public relevance of what is disseminated" is an element that has been taken into consideration, but not to determine the preponderant value of the constitutional right to freedom of expression or the freedom of information of the person who published information related to the appellant – a person whose identity is also unknown – or of the platform where user opinions are posted – a platform that is also based in the United States – but rather to justify that there is a preponderant public interest in accessing the information.

Thus, the Supreme Court explains that certain professional aspects of the appellant present a public interest that aligns with the interest of consumers and users in knowing and accessing publications that contain evaluations and opinions about professionals through the search engine.

To determine whether there exists such a superior public interest, it is appropriate to analogously apply the criteria already developed in our jurisprudence, where we have established that the existence of such interest may arise because the affected individual is a public person or has gained public notoriety, and in this second case, public notoriety may have been achieved through the professional activity they engage in, or by habitually disseminating facts and events from their private life, or they may have gained circumstantial prominence by being involved in events that enjoy that public relevance (Constitutional Court Judgments 99/2002, of May 6, FJ 7, and 23/2010, of April 27, FJ 5). It is also possible that even if the affected individual is not a public person nor has gained public notoriety, there may still be a public interest in accessing such information if it pertains to a matter of general interest (Constitutional Court Judgment 216/2013, of December 19, FJ 6):

b) (...) Once the public status of the appellant is ruled out, it must be determined whether there is an interest in accessing the information based on the subject matter in question. The fact that the information relates to the current professional life of the interested party is an element to consider, as highlighted by Google in its submissions, and as stated in the guidelines on the implementation of the CJEU Google Spain ruling, from the Article 29 Data Protection Working Party, which establishes that "information is more likely to be relevant if it relates to the current professional life of the interested party." However, this fact is not decisive because, as those same guidelines indicate, "it will largely depend on the nature of the work itself and the public's interest in having access to..."

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"this information through a search by their name" (commentary on criterion 5, page 17).

It is necessary to determine, in the first instance, whether access to what is published contributes to the formation of a free public opinion (STC 49/2001, of February 26, FJ 6), because what deserves special constitutional protection is the dissemination of ideas that contribute to that end and that facilitate the citizen's ability to freely form their opinions and reasonably participate in public affairs (STC 23/2010, of April 27, FJ 3). If such an interest exists, in any case, it would only extend to that communication whose knowledge is necessary for the real participation of citizens in collective life and that is not formally degrading (STC 110/2000, of May 5, FJ 8).

(i) (...)

(ii) Regarding the work developed, it cannot be considered that real estate promotion constitutes a professional activity that grants public relevance to any publication related to any professional in that sector. (...)

(iii) Finally, it should be noted that the application of the criterion of public relevance must be more restrictive when it comes to access through a link in a search engine, insofar as, even if the link obtained after a search aimed at the name and surname of that person is removed, such access can always be made through the website where the original information is published, or even through the search engine using search criteria other than the name and surname of the affected person. In this regard, the Court of Justice of the European Union has already noted that "the result of the balancing of conflicting interests that must be carried out [...] may differ depending on whether it concerns processing carried out by a search engine manager or by the publisher of this webpage, given that, on the one hand, the legitimate interests that justify these processes may be different, and, on the other, the consequences of these processes on the interested party, and in particular on their private life, are not necessarily the same."

"In effect, to the extent that the inclusion, in the list of results obtained after a search carried out based on a person's name, of a webpage and information contained therein relating to this person significantly facilitates the accessibility of such information to any internet user who conducts a search about the interested party and can play a decisive role in the dissemination of this information, it may constitute a greater interference in the fundamental right to respect for the private life of the interested party than the publication by the publisher of this webpage" (CJEU Google Spain, § 86 and 87). All these circumstances, taken together, lead us to consider that in the present case it cannot be concluded that access by this means to mere opinions and personal comments about the professional activity of private individuals, who are not public figures nor have gained notoriety due to such professional activity, contributes per se to the formation of a free public opinion.

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B) The time factor.

(...) Regarding the publications referenced by the judicial bodies, it is true that, from a strictly temporal perspective, they can be considered "current" on the date when Mr. M.J.L. submitted his cancellation request to the company Google. However, the problem lies in the fact that they are not pertinent to support the current nature of the opinions published by the user on the complaint portals. (...)

But none of these comments make any reference to the information contained in the news articles that have been taken into account by the judicial resolutions to support the current nature of the published opinions, which refer to a criminal judicial procedure in which Mr. M.J.L. is allegedly involved. While such news about that criminal procedure may be current, and consequently may justify a higher public interest in accessing it, the current nature does not transfer to the opinions expressed about the appellant on the complaint portals that do not pertain to those criminal proceedings.

Therefore, it can be concluded that the elements considered by the judgments challenged here do not reveal the existence of a predominant public interest in accessing such information, to the extent of allowing the sacrifice of the appellant's right to be forgotten concerning the search engine Google.

(...)

FIFTH: In the present case, according to the documentation in the proceedings, the claimant requested the deletion of his personal data from the respondent, in relation to the URL subject to the complaint, with the purpose of ensuring that his personal data are not linked to search results based on his name.

The respondent replied by denying the claim with justification, considering that the data is relevant and of public interest and refers to information related to professional activity clearly protected by the freedom of information.

Once the allegations and the documentation submitted by the respondent were examined, the claim

was admitted for processing due to a possible violation of the right to deletion and the right to be forgotten in Internet searches.

The respondent indicates that it has re-examined the content of the webpage to which the disputed search result refers and has reconsidered its initial decision, proceeding accordingly with the blocking requested by the claimant.

Therefore, with the new measures adopted by the respondent, the rights of the affected party are duly restored, and consequently, it is appropriate to uphold the present claim on formal grounds, as the request has been attended to extemporaneously, without the need for additional actions.

Having seen the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD, for formal reasons, the claim made by Mr. A.A.A. against GOOGLE LLC.

However, it is not appropriate to issue a new certification by said entity, as the right has been attended to extemporaneously, without the need for additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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